

**CONTRACTING OFFICER'S DETERMINATION AND FINDING
SMALL BUSINESS INNOVATION RESEARCH (SBIR) PHASE III
Deriving from SBIR Phase II: FA864919CA060**

CONTRACTING ACTIVITY/AGENCY: 81st Contracting Squadron, Air Education and Training Command, Department of the Air Force.

81 CONS/PKB

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Upon the basis of the following Determination and Finding (D&F) which I make pursuant to the authority of § 9 of the Small Business Act (the Act), 15 U.S.C. 638, Small Business Administration SBIR/STTR Policy Directive dated 3 May 2023, and FAR 1.7, the proposed action is hereby authorized.

BACKGROUND:

1. IAW the above statute and policy directive, a Federal Agency may enter into a Phase III SBIR agreement at any time with a Phase II Awardee. SBIR-derived products or services intended for use by the Federal Government and funded by non-SBIR sources of Federal funding are one of the three types of activity that constitutes SBIR Phase II work. Another type that applies is commercial application, including testing and evaluation of products, services or technologies for use in technical or weapon systems, of SBIR-funded R/R&D that is financed by non-Federal sources of capital. This effort is to award a Purchase Order, SBIR-III contract to Learntowin, Inc. The company, Learntowin, Inc. was awarded a SBIR Phase II purchase order, FA864919CA060 on 07 August 2019, under Air Force Topic AF192-D001, "Open Call for Innovative Defense-Related Dual-Purpose Technologies/Solutions with a Clear Air Force Stakeholder Need."

2. The 81st Training Group (TRG)'s emerging requirement for a pivot toward technical training transformation is firmly grounded in the support currently provided by Learntowin, Inc. on this contract. The scope of Learntowin, Inc. SBIR Phase II, FA864919CA060, is closely aligned with 81 TRG's emerging line of effort and provides a solid foundation for further innovative development under a Phase III SBIR contract. This further innovation will offer tremendous value not only to 81 TRG, but also to DoD and other federal departments and agencies.

3. The competitions for SBIR Phase I and Phase II awards satisfy any competition requirements of the Armed Services Procurement Act, the Federal Property and Administrative Services Act, and the Competition in Contracting Act. An agency that wishes to fund a SBIR Phase III award, which is an extension of prior Phase I and/or Phase II awards, is not required to conduct another competition for the Phase III award in order to satisfy those statutory provisions. As a result, in conducting actions relative to a Phase III SBIR award, it is sufficient to state for purposes of a Justification and Approval (in this case a D&F), that the project is a SBIR Phase III award that is derived from, extends, or completes efforts made under prior SBIR Funding Agreements and is authorized pursuant to 15 U.S.C. 638(r)(4).

4. Although additional justification is not needed to satisfy any competition requirement, it is imperative to demonstrate how an anticipated SBIR Phase III award to Learntowin, Inc. is derived from their Phase II SBIR award. Furthermore, this D&F will expire at the end of the contract ordering period.

FINDINGS:

81 TRG is seeking to pursue a SBIR Phase III award to Learntowin, Inc. based on facts involving the company's existing SBIR Phase II award and their correlation with the following requirements. The SBIR/STTR Reauthorization Act of 2011, states Phase III awards will be sole source to the greatest extent practicable. Pursuant to FAR 6.302-5, the requirement is a SBIR/STTR Phase III award that is derived from, extends, or completes efforts made under prior SBIR/STTR funding agreements and is authorized under 10 U.S.C 2034(b)(2). Therefore, this will be sole source to Learntowin, Inc.

- 81 TRG's requirement is to:
 - Pivot toward transforming technical training by providing a learning ecosystem that allows instructors to tailor training to the pace of learning for each trainee.
 - Incorporate digital-age technology across the command to support Force Development and for Airmen to obtain & exchange information on their device of choice.

1. Learntowin, Inc. SBIR Phase II discusses each of the above points and directly correlates to the need of 81 TRG's requirements.

- An interactive, mobile learning platform used for content creation, training, and assessment.
- Rapid content creation, playback, and analytics.
- Learntowin, Inc. worked with the Air Combat Command (ACC) Training Support Squadron (TRSS) to develop training software that would enhance initial qualification training and continuation training to support efficient and effective learning.

2. A SBIR Phase III will allow the commercialization of this technology across many domains and build content that can be shared across the DoD. The ability of Learntowin, Inc. to create a cost effective, repeatable platform for use across the DoD is invaluable to the commercial marketplace and the U.S. Government.

3. In summary, 81 TRG's requirement is derived from Learntowin, Inc.'s SBIR Phase II award. The ability to have a unified platform to create, develop, and deliver virtual content that meets DoD standards quickly is the central premise throughout Learntowin, Inc.'s final report. Beyond the ability to create shareable content, they allow for the development of virtual training environments. The capabilities identified in Learntowin, Inc.'s Phase II will not only fulfill 81 TRG's requirements, but will also offer the ability for commercial entities to effectively create digital content for government use.

DETERMINATION:

Based upon the findings discussed above, I hereby determine, pursuant to the authority of § 9 of the Small Business Act (the Act), 15. U.S.C. 638, SBIR/STTR Policy Directive dated 3 May 2023, and FAR 1.7, that pursuing SBIR Phase III award to Learntowin, Inc. that derives from Learntowin, Inc.'s Phase II proposal, is in the best interest of the U.S. Government.

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